



IMI Reference Case Register 99965 - A61VMN 158049

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint on August 14, 2019, with the data protection authority of France. The complaint is directed against VOLOTEA S.L. (hereinafter VOLOTEA) with NIF B64841927. The reasons for the complaint are as follows:

The complainant states that, after unsuccessfully attempting through the website, they requested VOLOTEA in April 2019 to delete the credit card data from their profile, but not only did they not receive a response, but, on the contrary, at the end of June, a charge of 49.99 EUR was made to it. Furthermore, they state that they sent three emails in July to request a refund of the amount, and have only received automated responses acknowledging receipt of their request, but their request has not been addressed.

The complainant has provided the following documentation:

- Transcript of the content of an email that the complainant indicates they sent to VOLOTEA on April 1, 2019, in which they state that they cannot delete the credit card data from their profile and request that it be removed.
- Transcript of the content of emails that the complainant indicates they sent to VOLOTEA on July 19, 23, and 25, 2019. The transcript of the email from July 19, the content of which is repeated in the transcripts of the emails from July 23 and 25, is as follows (in French in the original):

“Good morning,

I noticed a charge on my bank account of 49.99 EUR on June 27, 2019, corresponding to a debit transaction on my credit card in favor of the company VOLOTEA. I have not made any purchase from your company.

Having been unable to validate the deletion of the references to my credit card from the site, I had already sent an email on April 1, 2019, requesting that my credit card be removed from my profile. I did not receive an acknowledgment of receipt, and my request was not followed up, as a deduction was made on my card that I did not authorize.

I ask that you refund me the 49.99 EUR.

With my thanks

Sincerely,

A.A.A.”

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- Copy of communication from the Customer Service of VOLOTEA to the complainant dated July 19, 2019, from the address “General Information ” with the subject “Re: Débit de ma carte bancaire non autorisé” (in Spanish: “Re: Debit of my unauthorized credit card”) and with the following content: “Merci de nous avoir soumis votre requête. Nous avons bien reçu votre demande et nous vous répondrons dans les meilleurs délais. Merci par avance pour votre aide et votre patience. L’équipe Volotea.” (in Spanish: Thank you for sending us your request. We have received your request and will respond to you as soon as possible. Thank you in advance for your help and patience. The Volotea team”)

- Transcript of the content of an email that the complainant indicates they sent to VOLOTEA on July 30, 2019. The content of this transcript is as follows (in French in the original):

“Good morning,

I sent you three emails on July 19, 23, and 25 that went unanswered! How disappointing on your part! A debit transaction on my credit card of 49.99 EUR was carried out on June 27, 2019, in favor of the

company VOLOTEA without my authorization. I cannot delete the references to my credit card from my profile on your site. I had already sent you an email on April 1, 2019, requesting that my credit card be removed from my profile.

I did not receive an acknowledgment of receipt, and my request was not followed up, as a charge was made on my card that I had not authorized.

I have not received any response from your services and I do not have a non-premium phone number to contact your services, so I will proceed with legal actions for the fraudulent use of my credit card.

I ask that you refund me immediately the 49.99 EUR.

With my thanks

Sincerely,

A.A.A.”

- Transcript of the content of an email that the complainant indicates they sent to VOLOTEA on August 14, 2019, in which, having not received a response from VOLOTEA to their previous emails, they informed the CNIL of the situation.

SECOND: Through the “Internal Market Information System” (hereinafter IMI), regulated by Regulation (EU) No. 1024/2012 of the European Parliament and of the Council, of October 25, 2012 (IMI Regulation), whose objective is to promote cross-border administrative cooperation, mutual assistance among Member States, and the exchange of information, the aforementioned complaint was transmitted on October 15, 2021, and was registered with the Spanish Agency for Data Protection (AEPD) on October 19, 2021. The transfer of this complaint to the AEPD is carried out in accordance with the provisions of Article 61 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (in what

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subsequent, GDPR), taking into account its cross-border nature and that this Agency is competent to act as the main supervisory authority, given that VOLOTEA has its registered office and main establishment in Spain.

The data processing carried out affects data subjects in several Member States. According to the information incorporated into the IMI System, in accordance with the provisions of Article 60 of the GDPR, it acts as an “interested supervisory authority,” in addition to the data protection authority of France, the authority of Italy, by virtue of the fact that the data controller or processor is established in the territory of the Member State of that supervisory authority.

THIRD: On October 22, 2021, in accordance with Article 64.3 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), the complaint submitted by the complainant was accepted for processing.

FOURTH: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to supervisory authorities in Article 57.1 and the powers granted in Article 58.1 of the GDPR, and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

In response to a request for information, dated April 19, 2022, VOLOTEA provided, among other things, the following information:

1. It indicates the application of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights, which in its Article 74 establishes as a minor infringement “not attending to requests for the exercise of the rights established in Articles 15 to 22 of the GDPR,” with a limitation period of one year. It indicates that the complaint took place in 2019 and points out the application of this article to declare the limitation of these actions.
2. It indicates the application of the expiration periods of Article 64 of the LOPDGDD, in the event that they have already elapsed, which establishes a maximum period of 6 months from the admission.
3. It indicates that, having conducted a search in its current customer service system by the name and surname of the complainant, the email address ***EMAIL.1 appears only once in an email dated November 7, 2019. A screenshot of a ticket system is provided in which a search was conducted by the name and surname of the complainant, showing only one user with an email, which is ***EMAIL.1;

three other users with names and surnames similar to those of the complainant appear, but not identical. A search by the email address ***EMAIL.1 in this ticket system is also provided, showing that only one user and one ticket appear.

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4. It indicates that VOLOTEA's customer service system was changed in the first half of 2019, so access to the historical database of the old customer service system has only been possible, which does not allow for searches of complete cases; for this reason, a search for emails from ***EMAIL.1 was conducted, yielding the following results:

- Email dated July 19, 2019, with the same content indicated by the complainant.
- Email dated July 30, 2019, with content different from that indicated by the complainant.
- No emails were received from the address ***EMAIL.1 on April 1, 23, 25, or 30, or August 14.

5. A screenshot of a query to the table “(...)” is provided, in which the field “(...)” is “***EMAIL.1”, from which a single result is obtained with a customer identifier (“(...)”) equal to “(...)”. A query in the table “(...)” of the cases where the field “(...)” is equal to that same customer identifier “(...)” is also provided; from this query, 5 results are obtained with the following creation dates (field “(...)”) and content (field “(...)”, of which it is indicated that only the beginning of the message content is shown):

- May 1, 2018: Contains a request about a flight that is not related to this complaint.
- May 3, 2018: Contains the indication that a new reservation has been made.
- July 13, 2018: Contains an incident regarding the printing of boarding passes that are not related to this complaint.
- July 19, 2019: “Good morning, I have noticed a charge on my bank account of 49.99 EUR on June 27, 2019, corresponding to a debit transaction on my credit card in favor of the company Volotea. I have not made any purchase from your company. Not having been able to validate” (in French in the original).
- July 30, 2019: with content the same as the previous email: “Good morning, I have noticed a charge on my bank account of 49.99 EUR on June 27, 2019, corresponding to a debit transaction on my credit card in favor of the company Volotea. I have not made any purchase from your company. Not having been able to validate” (in French in the original).

6. It indicates the application of the provisions established in Law 58/2000, of January 7, on Civil Procedure, regarding the obligation of the plaintiff to substantiate their claims or the facts on which they are based. It opines that the evidence provided by the complainant is insufficient to substantiate the facts they claim, as they are transcriptions of emails without indicating the

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Neither the email addresses of the senders nor the recipients of the emails are provided, nor do they offer any guarantee of their sending or content.

7. Indication that, in the email received by the claimant on July 19, 2019 (and, presumably, in the one from July 30, 2019), a request for a refund of a charge of 49.99 euros was made, and no exercise of data protection rights was carried out, but rather a reference was made to a request dated April 1, of which there is no record. Thus, it is indicated that “Since the email of July 19 (nor, presumably, the one from July 30) does not contain an explicit request for data deletion, expressed in accordance with data protection regulations, and considering that these are the only emails we have record of receiving, we understand that the user did not exercise any data protection rights in those emails.” and that “There is therefore no record of having received any other email, beyond the unverified and unsubstantiated transcription by the interested party of this Requirement.”

Similarly, it is indicated that “In any case, we want to record that the information related to the credit card was effectively deleted from the interested party's user profile on the same July 19, 2019.” A screenshot of the user management system (...) of the data of a user with the name and surname of the claimant is provided, in which it is observed that their email is “***EMAIL.1” and that the fields “Frequent Flyer Numbers,” “Customer Programs,” and “Default Payments,” among others, are empty.

8. Indication that these emails from July 19 and 30, 2019, were directed to the address info@volotea.com, which is different from the address “dataprotection.officer@volotea.com,” which has always appeared in VOLOTEA's privacy policy.

9. Links to the privacy policies that appear in the service (...) of the website ***WEB.1 (which contains a historical archive of website content) at the address “<https://www.volotea.com/fr/conditions-legales/politique-de-confidentialite/>” on the dates September 28, 2018, May 23, 2019, June 20, 2019, and July 18, 2019. In these privacy policies, it is noted that the email address “dataprotection.officer@volotea.com” appears in two sections of the privacy policy: as “E-mail de contact” in the section “Qui est responsable du traitement de vos données personnelles ?” [Unofficial translation: “Who is responsible for the processing of your personal data?”], and in the section “Qui est le chargé de la protection des données de Volotea ?” [Unofficial translation: “Who is the data protection officer of Volotea?”], where the following indication appears: “Cette personne sera chargée de fournir toutes les informations dont vous pourrez avoir besoin concernant vos données personnelles. Si vous souhaitez la contacter, vous pouvez lui écrire à l'adresse électronique suivante: dataprotection.officer@volotea.com” [Unofficial translation: “This person will be responsible for providing all the information you may need regarding your personal data. If you wish to contact her, you can write to the following email address: dataprotection.officer@volotea.com.”]

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In the data protection policies dated May 23, 2019, June 20, 2019, and July 18, 2019, the email address “dataprotection.officer@volotea.com” also appears within the following phrase:

“Bien entendu, vous êtes en droit de retirer à tout moment les autorisations spécifiques que vous nous aurez éventuellement accordées pour exploiter vos données personnelles. Pour faire ça, il suffit de nous envoyer un e-mail à l'adresse dataprotection.officer@volotea.com. Veuillez noter qu'est nécessaire d'apporter une photocopie de votre passeport ou de votre document d'identité nationale, afin que nous puissions vérifier votre identité et éviter un exercice frauduleux de vos droits.”

[Unofficial translation: “Of course, you have the right to withdraw at any time any specific permission you may have granted us to use your personal data. To do this, simply send us an email at dataprotection.officer@volotea.com. Please note that it is necessary to provide a photocopy of your passport or your national identity document, so that we can verify your identity and prevent fraudulent exercise of your rights.”]

10. Indication that, after searching with the term “A.A.A.” in the mailbox

“dataprotection.officer@volotea.com” and in the Excel document used for managing this mailbox, no email from the claiming party was found.

11. Indication that, in addition to managing the mailbox “dataprotection.officer@volotea.com,” since April 11, 2022, VOLOTEA users can also exercise their rights through a form available on their website in various languages. Screenshots of these forms in French and Spanish are provided along with links to these forms (<https://www.volotea.com/fr/formulaire-des-droits-des-passagers/> and <https://www.volotea.com/es/formulario-derechos-pasajeros/>, respectively).

Total annual global turnover: VOLOTEA, according to a query made in the Monitoriza service of Axesor (<https://monitoriza.axesor.es/>) on May 24, 2022, is recorded as a “Group subsidiary” company that had sales of 192,800,305 euros and a number of employees of 688.

FIFTH: On September 16, 2022, the Director of the AEPD adopted a draft decision to initiate sanctioning proceedings. Following the process established in Article 60 of the GDPR, on October 3, 2022, this draft decision was transmitted through the IMI system, and the interested authorities were

informed that they had four weeks from that moment to submit relevant and justified objections. The processing period of this sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.4 of the LOPDGDD.

Within the timeframe for this purpose, the interested supervisory authorities did not submit relevant and justified objections in this regard, so it is considered that all the

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authorities agree with this draft decision and are bound by it, in accordance with the provisions of paragraph 6 of Article 60 of the GDPR.

This draft decision was notified to VOLOTEA in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP) on September 19, 2022, as evidenced by the acknowledgment of receipt in the file.

SIXTH: On November 23, 2022, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against VOLOTEA in order to impose a fine of 2,000 euros, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 12 of the GDPR, in relation to Article 17, classified under Article 83.5 of the GDPR, in which it was indicated that VOLOTEA had a period of ten days to submit allegations.

This initiation agreement, which was notified to VOLOTEA in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was recorded on November 23, 2022, as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On December 2, 2022, VOLOTEA submitted a document through which it requested an extension of the deadline to present allegations.

EIGHTH: On December 5, 2022, the instructing body of the procedure agreed to extend the requested deadline by up to five days, in accordance with the provisions of Article 32.1 of the LPACAP.

The aforementioned agreement was notified to VOLOTEA on December 5, 2022, as evidenced by the acknowledgment of receipt in the file.

NINTH: On December 16, 2022, this Agency received, in due time and form, a document from VOLOTEA in which it presented allegations against the initiation agreement, in which, in summary, it stated that:

1.- Regarding the facts described in the agreement: the interested party would not have exercised the right of cancellation.

VOLOTEA understands that, from the emails it has received from the complaining party, it cannot be deduced that the right to erasure of personal data has been exercised, for the following reasons:

a) it is not requested to the personal data mailbox or department,
b) in the first email that VOLOTEA receives, the complaining party indicates that they had requested it in a previous email, which VOLOTEA states it has not received, but in that email, it does not request it, rather it states that it had asked for it. Therefore, it considers that there has been no infringement by VOLOTEA, as it believes that there has not been a formal exercise of the right to erasure.

On the other hand, VOLOTEA understands that, even in the event that this Agency considers that a data protection right has indeed been exercised by the complaining party, it should not be considered that “the infringement continues at present” as stated in the section on “significant evidence for the graduation of the sanction,” that is, it should not be considered that the infringement has a continuous nature, but rather that it would be a single-instance infringement, as they understand that the infringement would exist from the moment that such a response was not made within the one-month period.

2.- Regarding the temporality of the case.

In this regard, VOLOTEA refers to its document dated April 19, 2022, submitted during the preliminary proceedings, in which the following was stated:

It states that the incident that motivated the complaint occurred in 2019, and therefore, they consider

that the subject of the complaint may have expired, based on what is established in Article 74 of the LOPDGDD, which states that “failure to respond to requests for the exercise of the rights established in Articles 15 to 22 of the GDPR” may be considered a minor infringement, with a limitation period of one year.” Therefore, they understand that it could be time-barred.

They also state that the expiration of the procedure may have occurred, as they believe that the request for information made to them would have been based on Article 67 of the LOPDGDD, and therefore, they understand that the complaint of the interested party would have already been admitted for processing. For this reason, they state that, as VOLOTEA was unaware of when the interested party filed the complaint with the CNIL, or the date on which the CNIL forwarded that complaint to the AEPD, the six-month deadline for admission to processing, or the nine-month deadline for the preliminary investigation phase, as provided in Article 64 of the LOPDGDD, would have been exceeded.

3.- Corrective measures implemented.

VOLOTEA states that it has adopted the following measures:

- implementation of a centralized request management form for rights in a specific back-office management system.
- implementation of a keyword alert system in the customer service case management system.
- review of internal procedures for managing the exercise of rights and handling complaints, which has resulted in a new procedure for handling GDPR rights that binds the customer service departments and the privacy office.
- they state that they have proceeded to inform the complaining party about the erasure of their personal data, providing as document 2 the proof of the response sent and the content of that response.

4.- Regarding the correction mechanism chosen by the AEPD.

VOLOTEA points out that this AEPD has other correction mechanisms that would be less harmful to the entity, such as a warning, or that it proceeds to respond to the complaining party, all taking into account the nature,

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the severity and intentionality of the infringement, as well as the measures taken by VOLOTEA to prevent similar situations in the future, and the absence of prior breaches.

Furthermore, it highlights that:

- the claiming party could verify that the information was no longer present in their user profile by accessing it.
- the payment data of the interested party was no longer present in their profile, which leads them to understand that no harm was caused to the claiming party. Thus, they believe that their rights and freedoms were not affected, and the only consequence that could have arisen from this action is the lack of knowledge or uncertainty regarding the deletion of their data.
- the existence of procedures initiated by the AEPD in which the parties claimed did not attend to the exercise of data protection rights and were not sanctioned:

Resolution R/00826/2022, in which the responsible party did not attend to a right of deletion, even after the application of the measures provided for in Article 65.4 of the LOPDGDD. VOLOTEA adds that this measure was not offered by the AEPD.

Resolution R/00058/2019, in which the responsible party did not attend to a right of access, and the claimed entity was urged to exercise the right and to provide evidence before the AEPD.

In these two cases, the opportunity to rectify the infringement was first offered, which was not proposed to VOLOTEA, despite having demonstrated that the data was no longer present in the user profile.

VOLOTEA understands that the consequences for the claiming party in these two cases, regarding their rights and freedoms, are more severe, as neither the exercise of the right was attended to or

executed, nor were the interested parties informed, because the exercise of the right was never attended to.

Likewise, VOLOTEA would not have been given the opportunity to address the right after receiving the complaint, in the event that this Agency considered that the claiming party had exercised such a right, as permitted by Article 37.2 LOPDGDD, given that VOLOTEA has a data protection officer duly appointed before this Agency.

For all these reasons, VOLOTEA understands that it has been duly evidenced in the present file:

- that the interested party would not have exercised a right of deletion in the manner provided for in the GDPR, and yet, their data would no longer be present in their user profile. Furthermore, the interested party could have accessed their profile to know this information.

- that the AEPD has powers to correct situations of non-compliance that do not involve sanctioning procedures and/or the imposition of fines, such as referring the complaint to the data protection officer (Article 37.2 LOPDGDD); ordering a response to the interested party (Article 58.2 c); as well as applying a warning (Article 58.2.b).

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- that no harm would have been caused to the claiming party in relation to their privacy, rights, and freedoms.

- that VOLOTEA has implemented technical and organizational measures aimed at preventing this situation from recurring in the future.

- that VOLOTEA would have already responded to the claiming party, so it could be considered that the infringement subject to the present file has been concluded.

TENTH: On February 7, 2023, the instructing body of the procedure agreed to open a period for the practice of evidence, considering incorporated the complaint filed by the claiming party and its documentation, the documents obtained and generated during the admission phase of the complaint, and the report of prior investigative actions that are part of procedure E/12479/2021, as well as the allegations to the initiation agreement of the referenced sanctioning procedure, presented by VOLOTEA, S.A., and the accompanying documentation.

In that writing, this Agency also agreed to the following documentary evidence: to request the control authority receiving the complaint to contact the claiming party in order to provide a copy of the headers of the email sent on April 1, 2019.

This action was carried out through a request for mutual assistance to the French data protection authority, under Article 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 (GDPR). According to the provisions of Article 64.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (LOPDGDD), the processing deadlines of the present procedure were automatically suspended from February 6, 2023, until March 21, 2023, the time that elapsed between the request and the notification of the ruling to the Spanish Agency for Data Protection.

ELEVENTH: On February 6, 2023, the AEPD requested, through the IMI System, the French data protection authority (CNIL) to require the claiming party to provide a copy of the headers of the email sent on April 1, 2019.

The French data protection authority shared, through the IMI system, on March 21, 2023, the following documentation:

- a copy of an email (in French) sent on February 9, 2023, at 19:39 from the address ***EMAIL.1 "Bonjour (...),

Je vous remercie de votre information.

Malheureusement je ne parviens pas à consulter mon historique "éléments envoyés" avant juillet 2019.

Changement d'ordinateur tombé en panne et mauvaise sauvegarde de ce courriel.

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I abandon this claim against the company Volotea which has never responded”

Unofficial translation:

“Good morning, (...),

Thank you for your information.

Unfortunately, I cannot check my 'sent items' history before July 2019.

The computer change was blocked, with a poor backup of this email.

I abandon this complaint against the company Volotea which has never responded”

Attached as an annex is a list of documents in the procedure.

From the actions taken in this procedure and the documentation in the file, the following has been established:

TWELFTH: On July 21, 2023, the Director of the AEPD adopted a draft decision to archive the proceedings. Following the process established in Article 60 of the GDPR, on July 28, 2023, this draft decision was transmitted through the IMI system, and the interested authorities were informed that they had four weeks from that moment to raise relevant and substantiated objections. The processing period of this sanctioning procedure was automatically suspended during these four weeks, in accordance with the provisions of Article 64.4 of the LOPDGDD.

Within the deadline for this purpose, the interested control authorities did not submit relevant and substantiated objections, so it is considered that all authorities agree with this draft decision and are bound by it, in accordance with the provisions of section 6 of Article 60 of the GDPR.

PROVEN FACTS

FIRST: The complaining party contracted the MEGAVOLOTEA service, in which, to access it, the user must subscribe directly from the website, or during a purchase or reservation process of a ticket, accepting the payment of an annual fee of 49.99 euros in exchange for obtaining discounts and benefits. This subscription occurred on April 26, 2018.

SECOND: On July 19, 2019, the complaining party sent an email with the following content (in French the original):

“Good morning, I noticed a charge on my bank account of 49.99 EUR on June 27, 2019, corresponding to a debit transaction on my credit card in favor of the company VOLOTEA. I have not made any purchase from your company. Not having been able to validate the removal of the references to my credit card from the site, I had already sent an email on April 1, 2019, requesting that my credit card be removed from my profile. I did not receive an acknowledgment of receipt, and my request was not followed up, as a deduction was made on my card that I did not authorize. I ask you to refund me the 49.99 EUR. Thank you...”

THIRD: On July 19, 2019, the complaining party received an email from the address info@volotea.com with the subject “Re: Unauthorized debit from my credit card” and with the following content (in French the original):

“Thank you for sending us your request. We have received your request and will respond to you as soon as possible. Thank you in advance for your help and patience. The Volotea team.”

FOURTH: On July 30, 2019, the complaining party sent an email to the entity VOLOTEA with the following text (in French the original):

“Good morning, I sent you three emails on July 19, 23, and 25 that went unanswered! How bad on your part! A debit transaction on my credit card of 49.99 EUR was made on June 27, 2019, in favor of the company VOLOTEA without my authorization. I cannot remove the references to my credit card from my profile on your site. I had already sent you an email on April 1, 2019, requesting that my credit card be removed from my profile. I did not receive an acknowledgment of receipt, and my request was not followed up, as a charge was made on my card that I had not authorized. I have not received any response from your services and I do not have a non-premium phone number to contact your services,

so I will proceed with legal actions for the fraudulent use of my credit card. I ask you to refund me immediately the 49.99 EUR. Thank you..."

FIFTH: The email address: "info@volotea.com" is one of the email addresses from which VOLOTEA offered customer service in 2019.

SIXTH: On July 19, 2019, VOLOTEA deleted the credit card data of the complaining party.

SEVENTH: On December 16, 2022, VOLOTEA informed the complaining party that the credit card data is not present in their systems.

LEGAL GROUNDS

I

Competence and applicable regulations

In accordance with the provisions of Articles 58.2 and 60 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data and the free movement of such data (GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 and 68.2 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights, it is competent to initiate and...

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to resolve this procedure, the Director of the Spanish Agency for Data Protection.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, it is established that there is a processing of personal data, since VOLOTEA collects and retains, among others, the following personal data of individuals: name and surname, email address, phone number, and credit card number, among other processing activities.

VOLOTEA carries out this activity in its capacity as data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR. Furthermore, this is a cross-border processing, given that VOLOTEA is established in Spain, although it provides services to other countries in the European Union.

The GDPR provides, in its Article 56.1, for cases of cross-border processing, as foreseen in its Article 4.23), regarding the competence of the lead supervisory authority, that, without prejudice to the provisions of Article 55, the supervisory authority of the main establishment or of the only establishment of the controller or processor shall be competent to act as the lead supervisory authority for the cross-border processing carried out by such controller or processor in accordance with the procedure established in Article 60. In the case examined, as stated, VOLOTEA has its main establishment in Spain, so the Spanish Agency for Data Protection is competent to act as the lead supervisory authority.

On its part, Article 17 of the GDPR recognizes the right of data subjects to have their personal data erased, while Article 12 of the GDPR regulates how this right should be exercised.

III

Right to Erasure (Article 17 GDPR)

Article 17 "Right to Erasure ('the right to be forgotten') of the GDPR establishes that:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning him or her without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following grounds applies:

a) the personal data are no longer necessary in relation to the purposes for which they were collected

or otherwise processed;

b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;

c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);

d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

IV

Modalities for Exercising the Rights of the Data Subject (Article 12 GDPR)

Article 12 “Transparency of Information, Communication, and Modalities for Exercising the Rights of the Data Subject” of the GDPR establishes that:

“(…).

2. The controller shall facilitate the exercise of the data subject’s rights under Articles 15 to 22. In the cases referred to in Article 11(2), the controller shall not refuse to act on a request from the data subject to exercise their rights under Articles 15 to 22, unless it can demonstrate that it is not in a position to identify the data subject.

3. The controller shall provide the data subject with information on its actions based on a request under Articles 15 to 22 without undue delay and, in any case, within one month of receiving the request. This period may be extended by a further two months where necessary, taking into account the complexity and number of requests. The controller shall inform the data subject of any such extensions within one month of receiving the request, indicating the reasons for the delay. When the data subject submits the request by electronic means, the information shall be provided by electronic means where possible, unless the data subject requests otherwise.

4. If the controller does not take action on the request of the data subject, it shall inform the data subject without undue delay, and at the latest within one month of receiving the request, of the reasons for not taking action and of the possibility of lodging a complaint with a supervisory authority and seeking a judicial remedy.

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(…)”

For its part, Article 12 “General Provisions on the Exercise of Rights” of the LOPDGDD states that:

“(…)”

4. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party shall rest with the responsible party.

(…)”.

1.- Regarding the facts described in the agreement: the interested party would not have exercised the right of cancellation.

In the present case, the complaining party claimed to have requested the deletion of their personal data, via an email sent to the email address ‘info@volotea.com,’ to which VOLOTEA would have responded to the complaining party, acknowledging receipt of their request on July 19, 2019.

The complaining party states that they sent an email on April 1, 2019, requesting such deletion.

However, in the present procedure, the sending of this email could not be verified. During the evidentiary period of the present sanctioning procedure, the complaining party was asked to provide a copy of the headers of this email, to which the complaining party responded that they no longer have it. In the email that the complaining party sent to VOLOTEA on July 19, 2019, VOLOTEA states that a

request for a refund of a charge of 49.99 euros was made, and no exercise of data protection rights was carried out, but rather a reference was made to a request dated April 1, of which VOLOTEA claims to have no record, and whose sending could not be substantiated.

In any case, VOLOTEA has stated in its letter dated April 19, 2022, that the information related to the credit card was effectively deleted from the profile of the complaining party on the same July 19, 2019. Likewise, in its letter dated December 16, 2022, it provided a copy of an email, dated December 16, 2022, sent to the complaining party, informing them that they no longer had "information related to their payment methods."

Therefore, based on the information indicated in the previous paragraphs, no evidence has been found to substantiate the existence of an infringement within the jurisdiction of the Spanish Data Protection Agency.

Consequently, it is not appropriate to analyze the rest of the allegations presented by VOLOTEA, to the extent that the sending of the email requesting deletion could not be verified.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been substantiated, the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: To archive the present sanctioning procedure against VOLOTEA, S.A., with NIF B64841927.

SECOND: TO NOTIFY this resolution to VOLOTEA, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

In accordance with the provisions of Article 60.7 of the GDPR, this resolution will be communicated, once it is final, to the interested supervisory authorities and to the European Data Protection Board. Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí
Director of the Spanish Data Protection Agency
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es